

Notice of References Cited	Application/Control No. 14/387,954		Applicant(s)/Patent Under Reexamination ALGHAMDl, SAEED SAEED	
	Examiner Amy L. Clark		Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	CPC Classification	US Classification
*	A	US-2011/0293755 A1	12-2011	Sigurjonsson; Gudmundur Fertram	A61K31/05	424/734
*	B	US-2010/0291249 A1	11-2010	Klein; Mordechai	A61K36/185	424/776
	C	US-				
	D	US-				
	E	US-				
	F	US-				
	G	US-				
	H	US-				
	I	US-				
	J	US-				
	K	US-				
	L	US-				
	M	US-				

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	CPC Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Bakhoor Bara-e-Bawaseer from Ikaseer Azam, Vol III (19 th Century AD), Munshi Nawal Kishore, Lucknow, 1917 AD. Mohammad Azam Khan. Retrieved from TKDL on 2016-08-16.
	V	Zimaad Barae Wareem-e-Kabid from Kitaab-al-Haawi-fil-Tibb, Vol VII (9 th century AD), Dayerah-al-Ma'aarif Usmania, Hyderabad, (First Edition) 1958 AD. Retrieved from TKDL on 2016-08-16.
	W	Lofty et al. "Combined use of Honey, Bee Propolis and Myrrh in Healing a Deep, infected wound in a patient with diabetes mellitus". Internet date: 2007-01-10. [Retrieved on: 2016-08-16]. Retrieved from the Internet: <URL: http://www.redorbit.com/news/health/795664/combined_use_of_honey_bee_propolis_and_myrrh_in_healing/ >.
	X	Jones, L.M. Exercise 18 in "Plastic Surgery & Dermatology Coding Guide for Ambulatory Surgery Centers". 2005. p 165.

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/387,954	09/25/2014	Saeed Saeed ALGHAMDI	427163US8PCT	9641

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EXAMINER

CLARK, AMY LYNN

ART UNIT	PAPER NUMBER
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1655

NOTIFICATION DATE	DELIVERY MODE
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08/22/2016

ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

patentdocket@oblon.com
oblonpat@oblon.com
ahudgens@oblon.com

Office Action Summary	Application No. 14/387,954	Applicant(s) ALGHAMDI, SAEED SAEED	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 06/15/2015.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-13 is/are pending in the application.
5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-13 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☒ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☒ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date ____. | 4) ☐ Other: ____. |

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DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Information Disclosure Statement

The information disclosure statements (IDS) are in compliance with the provisions of 37 CFR 1.97. Accordingly, the information disclosure statement is being considered by the examiner.

Claim Objections

Claim 1 is objected to because of the following informalities: the phrase "the wound" is missing the preposition before the term "the". Appropriate correction is required.

Claims 2 and 4-18 are objected to because of the following informalities: the comma is missing between the claim number in the preamble and the remainder of the claim. Appropriate correction is required.

Claim 2 is objected to because of the following informalities: the term "Different" is capitalized but should be lowercase. Appropriate correction is required.

Claims 3-18 are objected to because of the following informalities: the term "Claim" is capitalized but should be lowercase. Appropriate correction is required.

Claim Rejections - 35 USC § 112

The following is a quotation of 35 U.S.C. 112(b):

(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

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Claims 1-13 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

Claim 1 recites the limitation "the homogenized" in line 6. There is insufficient antecedent basis for this limitation in the claim.

The metes and bounds of claim 2 are rendered uncertain by the phrase "different ratios" because the amounts of the ingredients are not set forth in terms of either "by weight" or "by volume" amount of the total composition and it is not clear what Applicant regards as different ratios. Is Applicant claiming different ratios of each ingredient in relation to each other or the total composition? What does Applicant regard as "different ratios". The lack of clarity renders the claims indefinite since the resulting claims do not clearly set forth the metes and bounds of the patent protection desired.

Claim 3 recites the limitation "the tissue regeneration of the wound" in line 3. There is insufficient antecedent basis for this limitation in the claim.

Claim 3 recites the limitation "the tissue regeneration level" in line 4. There is insufficient antecedent basis for this limitation in the claim.

Claims 9 and 10 recite the limitation "a stabilizer" twice in the claim (in lines 4 and 5 of claim 9 and in lines 3 and 4 of claim 10). There is insufficient antecedent basis for this limitation in the claim.

Claim 12 recites the limitation "the homogenized" in line 1. There is insufficient antecedent basis for this limitation in the claim.

Claim Rejections - 35 USC § 102

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

(a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale or otherwise available to the public before the effective filing date of the claimed invention.

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Claims 1-3 are rejected under 35 U.S.C. 102(b) as being anticipated by Bakhoo Bara-e-Bawaseer (U).

Bakhoo Bara-e-Bawaseer teaches a therapeutic formulation comprising Anethum sowa in an amount of 35 grams, Punica granatum peel in an amount of 108 grams and Commiphora wightii gum guggul in an amount of 42 grams (which reads on oleoresin of myrrh) (which reads on different ratios) for local application for treating pain, piles, ano-rectal mass (which reads on a wound and can be caused by diabetes or gangrene) or hemorrhoids.

The method of using the referenced composition is not expressly taught as a method of treating diabetic or gangrenous wounds nor does the method of the reference teach the effects in claim 3. However, the instantly claimed process is a **one-step process** of topically administering a composition comprising. Thus, the functional effects of treating diabetic or gangrenous wounds and the effects in claim 3 are inherent to the method of using the composition taught by Bakhoo Bara-e-Bawaseer.

Therefore, the reference anticipates the instantly claimed invention.

Claim(s) 1, 3, 4 and 6-8 is/are rejected under 35 U.S.C. 102(b) as being anticipated by Zimaad Barae Ware-e-Kabid (V).

Zimaad Barae Ware-e-Kabid teaches a therapeutic formulation comprising Anethum sowa, Punica granatum peel and Commiphora wightii exudate (which reads on oleoresin of myrrh) for treating hepatitis and as a hepatonic, wherein the formulation is either a powder that is then mixed with a liquid base or a thick paste of herbs and wherein the formulation is topically applied.

The method of using the referenced composition is not expressly taught as a method of treating diabetic or gangrenous wounds nor does the method of the reference teach the effects in claim 3. However, the instantly claimed process is a **one-step process** of topically administering a composition comprising. Thus, the functional effects of treating diabetic or gangrenous wounds and the effects in claim 3 are inherent to the method of using the composition taught by Zimaad Barae Ware-e-Kabid.

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Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

Claims 1-13 is/are rejected under 35 U.S.C. 103 as being unpatentable over Sigurjonsson et al. (A*), in view of Klein et al. (B*), Loftly et al. (W) and Jones (X).

Sigurjonsson teaches a method of treating diabetic wounds comprising topically administering a composition comprising dill (See paragraph 0013), wherein the composition can be in the form of a gel, ointment, cream, balm or lotion (See paragraph 0027) and can be administered on gauze or gauze can be placed over the composition (See paragraph 0029). Sigurjonsson further teaches that the composition can comprise olive oil (See paragraph 0067) and can be administered as one dose or divided applications. Sigurjonsson further teaches that the application can be repeated weekly until skin and or wound healing is promoted, doses can be administered 1-7 days apart, can be administered one or more times per day, weekly or bi-weekly or monthly or in any other frequency for if and when healing slows or is stalled (See paragraph 0033). Sigurjonsson further teaches that the composition can comprise

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thickeners and emulsifiers (see paragraph 0025). Sigurjonsson further teaches that the formulation can further comprise additional therapeutically active compounds (See paragraph 0022).

Sigurjonsson does not teach pomegranate peel or myrrh.

Klein teaches pomegranate peel, wherein the peel can be administered as part of a dried formulation, for treating diabetic wounds (See claim 25).

Lofty teaches myrrh, which is an oleogum resin obtained from the stem of Commiphora molmol, is effective for treating and healing diabetic wounds.

Sigurjonsson does not teach cleaning the wound with alcohol prior to applying the composition.

Jones teaches cleaning diabetic ulcers with alcohol and applying ointment followed by a gauze dressing.

It would have been obvious to modify the composition used in the method taught by Sigurjonsson by combining dill with pomegranate peel and myrrh to provide a topical composition for treating diabetic wounds and to clean the ulcer with alcohol prior to placing the composition and a gauze dressing on the wound because at the time the invention was made, it was known that dill, pomegranate peel and myrrh were all useful ingredients that could be applied topically for treating diabetic wounds and that cleaning the diabetic wound with alcohol, followed by ointment and gauze dressing is a well-known way to treat diabetic wounds to promote healing as clearly taught by the above references.

It is well known that it is prima facie obvious to combine two or more ingredients each of which is taught by the prior art to be useful for the same purpose in order to form a third composition which is useful for the same purpose. The idea for combining them flows logically from their having been used individually in the prior art. Based on the disclosure by these references that dill, pomegranate peel and myrrh are useful ingredients in treating diabetic wound, the artisan would have been motivated to combine the claimed ingredients into a single composition. No patentable invention resides in combining old ingredients of known properties where the results obtained thereby are no more than the additive effect of the ingredients. See MPEP section 2144.06, In re Kerkhoven, 626 F.2d 846, 850, 205 USPQ 1069, 1072 (CCPA 1980), Ex parte Quadranti, 25 USPQ2d 1071 (Bd. Pat. App. & Inter. 1992).

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Thus, an artisan of ordinary skill would reasonably expect that combining dill, pomegranate peel and myrrh would be even more useful and effective for treating diabetic wounds and that cleaning the wound prior to administering the composition and gauze would provide a better and faster healing environment. This reasonable expectation of success would motivate the artisan to use dill, pomegranate peel and myrrh to treat diabetic wounds and to clean the wound with alcohol prior to adding the ointment and covering with gauze based upon the teachings of the above references.

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose an effective amount of a composition and its ingredients to make a safe and more effective treatment of diabetic ulcers, to determine a suitable amount of time and number of times to administer the formula, an effective form to have the composition in for easier application, an effective regimen to treat diabetic ulcers for faster and more effective healing and to determine healing rate during the process and adjusting the formulation and amounts of ingredients accordingly to provide the desired healing parameters as claimed in claim 3. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

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Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655